

Garrett Riegg v. James Dunn, et al., 24CV-0246 (consolidated with 23LC-0787)

Hearing: Motion to Quash

Date: August 5, 2026

Garrett Riegg (Riegg) filed an unlawful detainer action on October 23, 2023, against James Dunn and Hiroko Dunn. On April 22, 2024, Riegg filed a separate action seeking to quiet title to the Property (Case No. 24CV-0246). The two actions were consolidated in August 2024. The dispute concerns real property located at 2141 Cienaga Street in Oceano, California (the Property).

The complaint alleges Plaintiff bought the Property in August 2023, from Christopher Curzon and Mark Legreid (Legreid). (Cmpl., ¶ 7, Exs. 1, 4.) On that same day, Plaintiff executed a Short Form Deed of Trust and Assignment of Rents identifying Carole Arnold and Mark Legreid as the beneficiaries. (Cmpl., ¶ 8, Ex. 2.)

In May 2025, Riegg requested approval to serve “All Persons *Known and Unknown*, Claiming any Legal or Equitable Right, Title, Estate, Lien or Interest in the Real Property” (Italics added.) After Riegg submitted proof of both publication and posting a copy of the summons and complaint related to the civil action at the Property, default was entered on August 26, 2025, against “All Persons *Known and Unknown*, Claiming Any Legal or Equitable Right, Title, Estate, Lien or Interest in the Real Property” (Italics added.)

On January 27, 2026, Legreid, a nonparty, filed a declaration stating he was a senior lienholder pursuant to a first deed of trust (as a joint tenant with Carole Arnold), and also a resident of the property. The declaration took issue with the entry of default as to “All Persons Known or Unknown.” Legreid argues Riegg has always known he was a tenant of the Property.

On July 15, 2026, Legreid filed a motion seeking to quash service pursuant to Code of Civil Procedure section 418.10¹ and a motion to stay the action. In addition, Legreid filed an ex parte application seeking similar relief. The ex parte application states it seeks to “correct and amend” the motion to quash. The Court therefore treats the ex parte application as part of the motion to quash.

Two initial matters. First, it appears Legreid has standing to file the motion to quash. (§ 762.050.)² Second, Riegg opposes the motion based on deficient notice. He nonetheless has provided a substantive response. (*Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1 [opposition to the motion on its merits is a waiver of any notice defects].) The Court therefore will hear the motion.

¹ All statutory references are to the Code of Civil Procedure unless otherwise stated.

² Section 762.050 provides, “Any person who has a claim to the property described in the complaint may appear in the proceeding. Whether or not the person is named as a defendant in the complaint, the person shall appear as a defendant.”

The statutory scheme governing quiet title actions permits service by publication on all “unknown defendants.” (§ 763.010(b); see also § 763.010(c) [no service by publication on unknown defendants in open and actual possession of the property].) All other claimants are to be served in the same manner as in civil actions generally. (§ 763.010(a).)

Based on the attachments to the complaint Riegg had notice of Legreid’s potential claims on the Property at the time Riegg filed his complaint. Section 762.060(b) requires a plaintiff seeking to quiet title to property to “name as defendants the person having adverse claims that are of record or known to the plaintiff for reasonably apparent from an inspection of the property.”

Publication of the summons in order to serve a general group of “known” but unnamed defendants is improper. Similarly, the generic statements made in the Application for Publication were insufficient to support service by publication on an entire group of “known” but unnamed defendants. Section 415.50 requires an affidavit supporting the assertion that “*the party* to be served cannot with reasonable diligence be served in another manner specified in this article” Use of the definite article “the” refers to a *specific* person, place, or thing (*Pineda v. Bank of America, N.A.* (2010) 50 Cal.4th 1389, 1396-1397), not a general group of persons.

The Court sua sponte amends its June 6, 2025 order for service by publication to remove “known” defendants.” (*In re Marriage of Spector* (2018) 24 Cal.App.5th 201, 214 [trial court’s sua sponte reconsideration of an interim order was proper because it limited itself to changing its mind based on the evidence submitted in connection with the original motion].) In light of that amendment, the default entered against “known” defendants is void and the Court sets it aside on that ground. (§ 473(d); see also *Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 41 [affidavit in support of application for service by publication was deficient and materially misleading; and as such the resultant default judgment based on the defective service by publication was void].)

Legreid’s motion to quash places the sufficiency of service by publication on “known” defendants at issue. Riegg, as the plaintiff, has the burden to show “the facts requisite to an effective service.” (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) He has not done so in his opposition and thus, further briefing on the issue is unnecessary.

ORDER

The Court strikes the language “known and” from its order dated June 6, 2025, and strikes the same language from paragraph 1.b. of the Entry of Default entered on August 26, 2025.

In light of the Court’s order, Legreid’s motion to quash is moot, and is denied on that ground. Legreid’s other requests in the motion and ex parte application are also denied.

Riegg’s counsel should come prepared to address whether he needs to amend the complaint to add any known claimants to this quiet title action. A judgment to quiet title “is not effective against a person with a recorded claim at the time the lis pendens is filed or judgment is recorded who is not made a party to the action.” (12 Miller & Starr, Cal. Real Estate (4th ed. 2026) § 40:112, citing § 764.045.)